



INSTRUCTIONS FOR CERTIFICATE OF ELIGIBILITY APPLICATION



Enclosed is an Application for a Certificate of Eligibility to expunge a record of arrest, detention, investigation or conviction from the State of Utah, Department of Public Safety, Bureau of Criminal Identification. Please complete all of the steps described below. Failure to properly complete one of the steps may cause a delay in processing your application.

1. Fill out the top portion of the application. List all of your previous names including married and maiden names. Be sure to read and sign the application.
2. **Traffic offenses listed under Utah Code Ann. §77-40a-101(23) are not included on your Utah Criminal History.**
3. Provide a copy of your valid government-issued photo ID; for example, passport, state ID card, consulate ID card, or driver license. **"Utah Driving Privilege Cards" WILL NOT be accepted by BCI as a valid ID. Utah Driving Privilege Cards state on them that they are not to be used as ID. NOTE:** If you do not have a government-issued ID, go to the following link <https://bci.utah.gov/forms/acceptable-forms-of-identification/> to see "Other acceptable forms of ID".

FINGERPRINTS ARE REQUIRED

4. **The application fee is \$65.00 and non-refundable.** Select a method of payment by making a check mark in the appropriate box. Checks and money orders must be made payable to "BCI." To pay by credit card (Visa, MasterCard, Discover, or AMEX), please fill out the requested information on the application. Credit card numbers must include: the signature of the cardholder, the three or four-digit control number located on the back of the card, the expiration date, and the zip code of the card billing address. Cash is accepted only when applying in person. **DO NOT SEND CASH IN THE MAIL.**
5. **If you believe you are indigent and you check the box indicating you believe you are indigent you MUST complete the fee waiver form before submitting your application. (You may only have to fill out the first two pages. For any questions regarding indigent status you must contact the courts) The fee waiver form can be found on our website: bci.utah.gov/expungements. Your fee waiver form will be supplied back to you with your certificates if eligible.**
6. Your eligibility letter will be mailed or emailed to the mailing/email address indicated on the application form. If you need the information to be sent to a third party, the third party release form must be filled out and submitted along with your application.
7. Mail the application, fee, and release form (if applicable) to:

UTAH BUREAU OF CRIMINAL IDENTIFICATION
4315 South 2700 West, Suite 1300
Taylorsville, Utah 84129

Or you can email your application to our expungement section email at:

bciexpungements@utah.gov

NOTE - The expungement application MUST be completely filled out. All payment information along with fingerprints MUST be with the application.

For expungement criteria or any other questions, please go to our website at <https://bci.utah.gov/expungements/>

The Bureau of Criminal Identification does not expunge Juvenile Court records. Any request to expunge Juvenile Court records must be made directly to the Juvenile Court.

E	APPLICATION FOR CERTIFICATE OF ELIGIBILITY Utah Department of Public Safety • Bureau of Criminal Identification 4315 South 2700 West, Suite 1300, Taylorsville, Utah 84129
Your application will not be processed unless all sections of this form are filled out completely and accompanied by a non-refundable \$65.00 application fee.	
NAME: Reyes, Jordan Avery (Last Name)(First Name)(Middle Name) PREVIOUSLY USED NAME(S) (Maiden, AKA, etc.) DATE OF BIRTH 1991-04-17 GENDER MAILING ADDRESS 118 Maple Street, Springfield, UT 01234 (Street/Box number)(City)(State)(Zip) SOCIAL SECURITY: DRIVER LICENSE # AND STATE: PRIMARY PHONE NUMBER: 555-0142 TO RECEIVE CORRESPONDENCE VIA EMAIL INSTEAD OF REGULAR MAIL, PLEASE PROVIDE YOUR EMAIL ADDRESS BELOW. OTHERWISE, LEAVE BLANK. EMAIL: jordan.reyes@example.com	
If you believe that you are indigent and may qualify for a fee waiver, please check the box below. Please note: Your application will not be processed until you submit the required fee waiver form along with this application. ☐ I believe I am indigent and request a fee waiver. I understand that I must submit the completed fee waiver form for my application to be processed.	
Pursuant to Utah Code Ann. § 77-40a-301(2)(a), a petitioner who intentionally or knowingly provides false or misleading information to the bureau when applying for a certificate of eligibility is guilty of a class B misdemeanor and is subject to prosecution under Section 76-8-504.6 A certification of eligibility or an application for expungement may be denied if the petitioner provides false information under 77-40a-301(2)(b) I Jordan Avery Reyes , declare under criminal penalty of the State of Utah that the foregoing is true and correct. (Name of Petitioner) (Signature) (Date)	
METHOD OF PAYMENT (Only to be filled out if application is mailed in. Check appropriate box for payment) Application fee is \$65.00 ☐ Check, Money Order or Cashier’s Check (Payable to “BCI”) There will be a \$20.00 service charge for any returned check. ☐ Credit Card (cannot use foreign credit cards) must be ☐ Visa ☐ Master Card ☐ Discover ☐ AMEX Fill out the information below to pay by credit card. 3 or 4 digit control # Exp Date MM/YY	

Cardholders Signature: Zip Code Associated with Credit Card:

THIRD PARTY RELEASE FORM

Utah Department of Public Safety • Bureau of Criminal Identification
4315 South 2700 West, Suite 1300, Taylorsville, Utah 84129



WHEN FILLING OUT THIS FORM, TYPE OR PRINT IN BLACK INK. If you wish to have your criminal history record or certificate of eligibility sent to an individual other than yourself, you must indicate the name of the person or agency to whom you would like the documents sent. If the recipient is an agency, please also provide the name of the specific individual within that agency who is authorized to receive the document. Please include the complete mailing address.

NAME: _____
(Name of Person to Receive Report)

AGENCY: _____ (if applicable)

MAILING ADDRESS: _____
(Street/Box number) (City) (State) (Zip)

PHONE NUMBER: _____

EMAIL ADDRESS: _____
EMAIL IS FOR EXPUNGMENT APPLICATIONS ONLY

I request that the criminal history record or certificate of eligibility for which I applied be released to the individual or agency indicated above at the listed address. I hereby release the Bureau of Criminal Identification from any liability resulting from such release.

Name of applicant (Print): _____

Signature of applicant: _____ **Date:** _____

Utah District Court Cover Sheet for Civil Actions (Not for Probate and Domestic Relations Cases)

Interpretation. If you do not speak or understand English, the court will provide an interpreter. Contact court staff immediately to ask for an interpreter.

Plaintiff/Petitioner (First)

Jordan Avery Reyes

Name

118 Maple Street

Address

Springfield, UT 01234

City, State, Zip

555-0142

Phone

jordan.reyes@example.com

Email

First Plaintiff/Petitioner's Attorney or Licensed Paralegal Practitioner*

Name

Bar Number

Plaintiff/Petitioner (Second)

Name

Address

City, State, Zip

Phone

Email

Second Plaintiff/Petitioner's Attorney or Licensed Paralegal Practitioner*

Name

Bar Number

Interpretación. Si usted no habla ni entiende el Inglés el tribunal le proveerá un intérprete. Contacte a un empleado del tribunal inmediatamente para pedir un intérprete.

Defendant/Respondent (First)

Name

Address

City, State, Zip

Phone

Email

First Defendant/Respondent's Attorney or Licensed Paralegal Practitioner*

Name

Bar Number

Defendant/Respondent (Second)

Name

Address

City, State, Zip

Phone

Second Defendant/Respondent's Attorney or Licensed Paralegal Practitioner*

Name

Bar Number

*Attorney or LPP addresses provided by Utah State Bar.

Total Claim for Damages \$ _____ **Jury Demand** [] Yes [x] No \$250 [] Jury Demand

Schedule of Fees: §78A-2-301 (Choose all that apply. See Page 2 for fees for claims other than claims for damages.)

CHOOSE ONE:

- [x] No monetary damages are requested (URCP 26: Tier 2)
[] Damages requested are \$50,000 or less (URCP 26: Tier 1)
[] Damages requested are more than \$50,000 and less than \$300,000 (URCP 26: Tier 2)
[] Damages requested are \$300,000 or more (URCP 26: Tier 3)
[] Domestic relations (URCP 26: Tier 4)
[] Damages are unspecified.
Circle one: Tier 1 Tier 2 Tier 3
[] This case is exempt from URCP 26. (E)

— MOTION TO RENEW JUDGMENT —

\$ 52.50 [] Damages \$2000 or less

\$ 107.50 [] Damages \$2001 - \$9,999

\$187.50 [] Damages \$10,000 & over

— COMPLAINT OR INTERPLEADER —

\$105 [] Damages \$2000 or less

\$215 [] Damages \$2001 - \$9999

\$375 [] Damages \$10,000 & over

\$375 [] Damages Unspecified

— COUNTERCLAIM, CROSS CLAIM, THIRD PARTY CLAIM, OR INTERVENTION —

\$55 [] Damages \$2000 or less

\$165 [] Damages \$2001 - \$9999

\$170 [] Damages \$10,000 & over

\$170 [] Damages Unspecified

Choose One

Fee Case Type — — — — — APPEALS — — — — —

- \$375 [] Administrative Agency Review
 Sch [] Tax Court (Appeal of Tax Commission Decision)
Court: Refer to Clerk of Court upon filing.
 \$240 [] Civil (78A-2-301(1)(h)) (E)
 \$240 [] Small Claims Trial De Novo (E)
 \$80 [] Municipal Admin. Determination. (E)

- ### — — — — — GENERAL CIVIL — — — — —
- Sch [] Civil Rights
 \$0 [] Civil Stalking (E)
 \$375 [] Condemnation/Eminent Domain
 Sch [] Contracts
 Sch [] Contract: Employment Discrimination
 Sch [] Contract: Fraud
 Sch [] Debt Collection
 \$375 [] Essential Treatment Intervention (26B-5-503)
 Sch [] Eviction/Forcible Entry and Detainer (E)
 \$375 [] Extraordinary Relief (URCP 65B)
 \$375 [] Forfeiture of Property (E)
 Sch [] Interpleader
 Sch [] Lien/Mortgage Foreclosure
 Sch [] Miscellaneous Civil
 \$375 [] Post Conviction Relief: Capital (E)
 \$375 [] Post Conviction Relief: Non-capital (E)
 Sch [] Property Rights
 \$375 [] Registry Removal (Gun/White Collar)
 Sch [] Sexual Harassment
 Sch [] Water Rights
 \$375 [] Wrongful Lien
 Sch [] Wrongful Termination

- ### — — — — — TORTS — — — — —
- Sch [] Automobile Tort
 Sch [] Intentional Tort
 Sch [] Malpractice-Medical Tort
 Sch [] Malpractice-Legal Tort; Other
 Sch [] Premises Liability
 Sch [] Asbestos
 Sch [] Product Liability (NOT Asbestos)
 Sch [] Slander/Libel/Defamation

- ### — — — — — DOMESTIC RELATIONS — — — — —
- Use the **Utah District Court Cover Sheet for Domestic Relations Cases for the following:**
 Protective Orders, Marriage Adjudication, Divorce/Annulment, Custody/Visitation/Support, Counterclaim: Divorce/Separate Maintenance, Counterclaim: Custody/Visit/Support, Counterclaim: Paternity/Grandparent Visitation,

- ### Fee Case Type
- Domestic Modification, Counter-petition: Domestic Modification, Grandparent Visitation, Paternity/Parentage, Separate Maintenance, Temporary Separation, Uniform Child Custody Jurisdiction & Enforcement Act (UCCJEA), Uniform Interstate Family Support Act (UIFSA), Expungement Petition – Protective Order

- ### — — — — — JUDGMENTS — — — — —
- \$35 [] Foreign Judgment (Abstract of) (E)
 \$375 [] Foreign Country Judgment (E)
 \$50 [] Abstract of Judgment/Order of Utah Court/Agency (E)
 \$30 [] Abstract of Judgment/Order of Utah State Tax Commission (E)
 \$35 [] Judgment by Confession (E)

- ### — — — — — PROBATE — — — — —
- Use the **Utah District Court Cover Sheet for Probate Actions for the following:**
 Adoptions/foreign adoptions; conservatorships; estate personal rep; foreign probate; gestational agreements; guardianships; minor's settlements; name changes; supervised administration cases; trusts; other probate actions

- ### — — — — — SPECIAL MATTERS — — — — —
- \$35 [] Arbitration Award (E)
 \$0 [] Determination Competency-Criminal (E)
 \$150 [x] Expungement Petition - Criminal (E)
 \$150 [] Expungement Petition – Eviction (E)
 \$0 [] Expungement Petition - Civil Protective Order/Civil Stalking Injunction (E)
 \$0 [] Hospital Lien (E)
 \$35 [] Judicial Approval of Document: Not Part of Pending Case (E)
 \$35 [] Notice of Deposition in Out-of-State Case/Foreign Subpoena (E)
 \$35 [] Open Sealed Record (E)
 \$50 [] Petition for Adjudication of Priority to Funds on Trustee's Sale

- ### — — — — — MYPAPERWORK (OCAP) — — — — —
- (Utah Code §78A-2-501)
 \$60 [] Documents prepared using MyPaperwork (Online Court Assistance Program)

- ### — — — — — BUSINESS AND CHANCERY COURT — — — — —
- Use the **Utah Business and Chancery Court Cover Sheet** for actions in that court. (Utah Code 78A-5A-101 to 302)

Jordan Avery Reyes
Name

118 Maple Street
Address

Springfield, UT 01234
City, State, Zip

555-0142
Phone

jordan.reyes@example.com
Email

Check your email. You will receive information and documents at this email address.

I am the ☒ Petitioner
☐ Attorney for the Petitioner and my Utah Bar number is _____

In the ☒ District ☐ Justice Court of Utah

_____ Judicial District Example County County

Court Address _____

In Re:

Jordan Avery Reyes
Petitioner

**Petition to Expunge Records with
Certificate of Eligibility**
(Utah Code 77-40a-305(1)(a))

Case Number _____

Judge _____

1. I received a certificate of eligibility from BCI. The identification number for my certificate of eligibility is _____.
2. Expunging my records will not harm the interests of the public because:

3. I ask the court to order expungement of all records related to this matter and order state, county and local government agencies to expunge related records in their possession or control.

I declare under criminal penalty under the law of Utah that everything stated in this document is true.

Signed at _____ (city, and state or country).

Date

Signature ► _____

Printed Name Jordan Avery Reyes

Jordan Avery Reyes
Name

118 Maple Street
Address

Springfield, UT 01234
City, State, Zip

555-0142
Phone

jordan.reyes@example.com
Email

Check your email. You will receive information and documents at this email address.

In the ☒ District ☐ Justice Court of Utah

_____ Judicial District ~~Example County~~ _____ County

Court Address _____

In Re:

Petitioner

Jordan Avery Reyes

**Order on Petition to Expunge
Records with Certificate of Eligibility**

Case Number

Judge

The matter before the court is a Petition to Expunge Records. This matter is being resolved by:

☐ The pleadings and other papers of the parties, or

☐ A hearing held on _____ (date), notice of which was served on all parties and at which the court considered the pleadings and evidence presented by the parties.

Having considered the documents filed with the court, the evidence, and the arguments, and now being fully informed,

The Court Finds by Clear and Convincing Evidence that:

1. The petition is sufficient.
2. The certificate of eligibility was valid at the time the petition for expungement was filed with the court and contains the information needed for the court to issue an order for expungement.
3. The statutory requirements have been met.

4. Expunging the petitioner's records will not harm the interests of the public.
5. The court also finds that: (choose any that apply)
- ☐ the expungement petition is for a case that was dismissed without prejudice or without condition. The prosecutor has consented to the expungement, and the prosecutor has indicated that they have not filed and do not intend to file related charges.
- ☐ the court received an objection. The expungement petition is for a charge dismissed because of a plea in abeyance agreement, and the charge is eligible for enhancement, but there is good cause for the court to grant the expungement.

The Court Concludes:

6. The records of petitioner's arrest, investigation, and detention relating to: (choose one)
- ☒ the following incidents: _____; (law enforcement agency file number) of _____
(law enforcement agency name) should be expunged.
- ☐ case number: _____ should be expunged.

The Court Orders:

7. The records of petitioner's arrest, investigation, detention relating to:
- ☒ the following incidents: _____; (law enforcement agency file number) of _____
(law enforcement agency name) will be expunged.
- ☐ case number: _____ will be expunged.
- Petitioner may deliver a copy of this order to any government agency or official that may have such records.
 - The Bureau of Criminal Identification must notify all criminal justice agencies affected by this order.
 - The clerk of the court must expunge all related court records as provided by Rule 4-205.

- Any other government agency or official receiving this order must expunge related records as provided by Utah Code, Title 77, Chapter 40a, Part 4.
- Any government agency or official receiving this order may not divulge information identifying the petitioner.
- Any government agency or official receiving this order must respond to any inquiry as though the arrest or conviction did not occur.

Judge's signature may instead appear at the top of the first page of this document.

	Signature ►	
Date	Judge	

Name

Address

City, State, Zip

Phone

Email

Check your email. You will receive information and documents at this email address.

In the [] District [] Justice Court of Utah

_____ Judicial District _____ County

Court Address _____

In Re:

Petitioner

**Acceptance of Service –
Expungement (Prosecutor)**

Case Number

Judge

The undersigned acknowledges receipt of a copy of the Petition for Expungement.

Date _____ Sign here ►

Prosecutor (print name)

Address

City, State, Zip

Phone

Prosecutor's Name

Prosecutor's Address

City, State, Zip

Phone

Email

Check your email. You will receive information and documents at this email address.

In the [] District [] Justice Court of Utah

_____ Judicial District _____ County

Court Address _____

In Re:

Petitioner

**Consent and Waiver of Hearing –
Expungement
(Prosecutor)**

Case Number

Judge

The undersigned has reviewed Petitioner's Petition to Expunge Records and the case file.

[] The undersigned waives the right to object to Petitioner's Petition to Expunge Records.

[] The undersigned consents to this court entering an order for expungement.

[] The case was dismissed without prejudice or without condition, but the prosecution has not filed and does not intend to refile related charges.

[] There:

[] is a victim in this case.

[] is not a victim in this case.

[] The victim has been notified of the Petition to Expunge Records.

[] The victim has been notified and has authorized the undersigned to waive the victim's right to object to the Petition and to consent to this court entering an order for expungement without further notice.

Date _____ Sign here ► _____
Prosecutor (print name) _____
Address _____
City, State, Zip _____
Phone _____

Name

Address

City, State, Zip

Phone

Email

Check your email. You will receive information and documents at this email address.

I am the ☐ Victim of the crime being considered for expungement
 ☐ Attorney for the victim and my Utah Bar number is _____
 ☐ Prosecuting Attorney and my Utah Bar number is _____

In the ☐ District ☐ Justice Court of Utah

_____ Judicial District _____ County

Court Address _____

In Re Petition to Expunge the Records of

Petitioner

☐ **Victim's Statement**

☐ **Prosecutor's Statement**

Case Number

Judge

Attach additional pages as needed to complete paragraphs that don't have enough space. Write the paragraph number on the additional page.

1. I ☐ object ☐ do not object to expunging the petitioner's records because:

(Choose (2) if you have a recommendation and then choose the box(es) that describe your recommendation.)

2. ☐ I recommend:

☐ The court expunge the records.

☐ The court not expunge the records.

☐ Other recommendation:

I declare under criminal penalty under the law of Utah that everything stated in this document is true.

Signed at _____ (city, and state or country).

_____	Signature ►	_____
Date	Printed Name	_____

Certificate of Service

I certify that I filed with the court and am serving a copy of this Statement by the ☐ Victim ☐ Prosecutor on the following people.

Person's Name	Service Method	Service Address	Service Date
(Petitioner)	☐ Mail ☐ Hand Delivery ☐ E-filed/MyCase ☐ Email ☐ Left at business (With person in charge or in receptacle for deliveries.) ☐ Left at home (With person of suitable age and discretion residing there.)		
(Prosecutor)	☐ Mail ☐ Hand Delivery ☐ E-filed/MyCase ☐ Email ☐ Left at business (With person in charge or in receptacle for deliveries.) ☐ Left at home (With person of suitable age and discretion residing there.)		
(Victim)	☐ Mail ☐ Hand Delivery ☐ E-filed/MyCase ☐ Email ☐ Left at business (With person in charge or in receptacle for deliveries.) ☐ Left at home (With person of suitable age and discretion residing there.)		

Sign here ► _____

Date _____

Typed or Printed Name _____

Name

Address

City, State, Zip

Phone

Email

Check your email. You will receive information and documents at this email address.

I am the ☐ Petitioner
 ☐ Attorney for the Petitioner and my Utah Bar number is _____

In the ☐ District ☐ Justice Court of Utah

_____ Judicial District _____ County

Court Address _____

In Re Petition to Expunge the Records of

Petitioner

**Reply to Victim's Statement or
Prosecutor's Statement or AP&P
Response**

Case Number

Judge

Instructions: You may file a Reply **only** if the victim or the prosecutor has filed a statement or if Adult Probation and Parole has filed a response. This form is optional. You may file it, but you do not have to. If you file this form, you must do so within 14 days after the victim's statement or the prosecutor's statement or the AP&P response was served on you.

1. Statement made by the prosecutor, victim or Adult Probation and Parole that I disagree with:

2. I disagree because:

I declare under criminal penalty under the law of Utah that everything stated in this document is true.

Signed at _____ (city, and state or country).

_____	Signature ►	_____
Date	Printed Name	_____

Certificate of Service

I certify that I filed with the court and am serving a copy of this Reply to Victim's Statement or Prosecutor's Statement or AP&P Response on the following people.

Person's Name	Service Method	Service Address	Service Date
(Prosecutor)	☐ Mail ☐ Hand Delivery ☐ E-filed/MyCase ☐ Email ☐ Left at business (With person in charge or in receptacle for deliveries.) ☐ Left at home (With person of suitable age and discretion residing there.)		
(Victim) (if victim has filed statement)	☐ Mail ☐ Hand Delivery ☐ E-filed/MyCase ☐ Email ☐ Left at business (With person in charge or in receptacle for deliveries.) ☐ Left at home (With person of suitable age and discretion residing there.)		
(AP&P) (if AP&P has filed response)	☐ Mail ☐ Hand Delivery ☐ E-filed/MyCase ☐ Email ☐ Left at business (With person in charge or in receptacle for deliveries.) ☐ Left at home (With person of suitable age and discretion residing there.)		

 Date

 Signature ►

 Printed Name